

FTD-PIMS-PL-08 – V1.0

Candidate Privacy Notice [External]

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Candidate Privacy Notice

SUMMARY OF THIS NOTICE

1. This Notice applies to anyone who applies for a job role or open position at Fortude including through other Service Providers – [Section 2](#)
2. This Notice is in relation to Candidate Personal Data processed by each Fortude Company listed in [Section 3](#)
3. Fortude collects and processes personal data from job applicants, including identity, contact, biographical, and voluntarily disclosed information, while providing this data is optional, insufficient details may affect application assessment – [Section 4](#)
4. Fortude will only collect data from you for the purposes identified in this Notice – [Section 6](#)
5. Fortude may share Candidate Personal Data within its group entities across multiple jurisdictions with safeguards in place and may also share data with external third parties, such as service providers, legal authorities, and professional advisors, but only with express consent or when legally required – [Section 7](#)
6. Candidate Personal Data will be retained per legal requirements (if any). Successful applicants' data will follow the Employee Privacy Notice once onboarded, while unsuccessful applicants' data will be kept for up to 6 months for record-keeping and potential future opportunities unless you specifically opt out by contacting us at dpo@fortude.co – [Section 8](#)
7. Fortude implements technical and organizational measures to protect Candidate Personal Data from loss or unauthorized access, restricts access to authorized personnel, and will notify affected individuals and regulators of any suspected data breaches, though online data transmission carries inherent risks – [Section 9](#)
8. Depending on applicable laws, you may have data protection rights, including access, rectification, objection, portability, restriction, erasure, and the right to lodge complaints or withdraw consent. Some rights may be subject to legal or contractual limitations – [Section 10](#)
9. Fortude does not use automated decision-making under GDPR but will inform you if this changes. Refer to the Local Country Addendum for details on enforcing your rights – [Section 10](#)
10. Each Fortude Entity is the data controller responsible for your personal data under this Privacy Notice. For any queries, privacy concerns, or to exercise your rights, contact the Data Protection

Officer at DPO@fortude.co, referring to the Local Country Addendum for jurisdiction-specific details.

1. The Scope

This Candidate Privacy Notice ("**Candidate Privacy Notice**") is issued on behalf of the Fortude Companies as described in the Table in [Section 3](#) below ("**Fortude Group**"). All references to "Fortude", "we", "us" or "our" in this Notice is a reference to the relevant Fortude Company identified in [Section 3](#) below, who responsible for processing your personal data.

Fortude takes your privacy seriously, and we are committed to protecting your personal data. This Candidate Privacy Notice describes how Fortude Group collects, uses, stores, and discloses personal data in connection with our recruitment processes. It also explains who we are, how we collect, share and use your personal data and how you can exercise your privacy rights.

2. How does this Notice Apply to you?

It is important that you read this Notice carefully. The term "Candidate", "you" in this Candidate Notice refers to anyone who applies for a job role or open position at Fortude including through other Service Providers.

Please note that this Candidate Privacy Notice does not create or form part of any employment contract or otherwise.

You may also have certain rights with respect to your personal data under applicable data protection laws of your country. We have included supplemental information in this Privacy Notice, in the form of a "**Local Country Addendum**" for each of our group entities, which are located in Sri Lanka, Australia, USA, Canada, United Kingdom, EU region, specifically Netherlands and Singapore [For more information about us, please see [Section 3](#) below].

Click on the Country that may apply to you to see the **Local/Regional Country Addendum** applicable to you.

- [Sri Lanka](#)
- [Australia](#)
- [USA](#)
- [Canada](#)
- [United Kingdom](#)
- [EU Region](#)
- [Netherlands](#)
- [Singapore](#)

If you are unable to locate a Local Country Addendum that may be applicable to you, kindly contact us at dpo@fortude.co, and our Data Protection Officer will assist you further.

In the case of any inconsistencies between this Candidate Privacy Notice and the Local Country Addendum applicable to you, the Local Country Addendum will take precedence about the processing of your personal data.

3. Fortude Group

Fortude is a global enterprise and digital solutions company, that delivers digital solutions that matter to its customers around the world. The company's enterprise digital services capability spans across ERP, integrations, application development, data analytics, managed services, automation, and digital advisory

Fortude has offices in the US, Canada, UK, Netherlands, Sri Lanka, Singapore and Australia and partners with several large global technology, cloud, and automation product companies. The companies under the Fortude Group that you may engage with during the recruitment process are listed below for your convenience. This Notice is in relation to Candidate Personal Data processed by each Fortude Company listed below.

Fortude Company	Registered Address	Country of Establishment
Fortude (Private) Limited	25, Rhienland Place, Colombo 3, Sri Lanka	Sri Lanka
Fortude Pte Limited	27 Greville Street, London, England, EC1N 8SU	United Kingdom
Fortude BV	at Kraanspoor 50, 1033 SE in Amsterdam, the Netherlands, listed in the commercial register (Kamer van Koophandel)	Netherlands
Fortude Pty Limited	Unit 504 12 Claremont street, South Yarra, VIC 3141, Australia	Australia
Fortude Inc	445 Minnesota Street, Suite 1500, St. Paul, MN 55101	U.S
Fortude Inc – Canadian Branch	445 Minnesota Street, Suite 1500, St. Paul, MN 55101	Branch Office
Fortude Global Pte Limited	20 Bendemeer Road, #03-12, BS Bendemeer Centre, Singapore 339914	Singapore

For more information about Fortude, please see [About](#) section of our website.

4. What type of Personal Data Fortude may collect about you.

When you apply for a position at Fortude, we collect and process information that may include the below ("Candidate Personal Data"):

- **Identity data** such as name, surname, date of birth and place. Citizenship or immigration information, such as tax residency, nationality, ID/Passport, Social Security and visa status.
- **Contact Data** which is information such as an address, email address and telephone numbers.

- **Biographical Data:** Information in connection with you and/or your job application that is included in your CV/Resume which typically includes past employment history (previous employers, job titles and contact information for references), qualifications and education (including transcripts, information relating to professional licenses/certifications).
- Any other information you voluntarily disclose throughout the recruiting process, such as contact information of references, compensation history, and personal situation.

You are under no legal obligation or contractual obligation to provide Candidate Personal Data during the recruitment process. But if you do not provide sufficient information (such as proof of qualifications and past work experience), we may not be able to assess your application properly or at all.

We also rely on you providing us with most up to date, accurate information about yourself. If there is a need to change Candidate Personal Data you have already provided to us please contact us at DPO@fortude.co to correct any information.

If you are offered and you accept a role at Fortude, the Candidate Personal Data collected during the recruiting process will become part of your employee file and will be governed by the Fortude Employee Privacy Notice, a copy of which will be provided to you when you are on-boarded as an employee.

5. How we collect the Candidate Personal Data (Sources).

- A. We will collect Candidate Personal Data directly from you. This might be when you;
 1. Apply for a job role at Fortude based on a job posting on platforms such as LinkedIn and other similar online Job-boards and through our social media pages.
 2. Apply for a job through our career's pages.
 3. When we partner with universities, and you provide Candidate Personal Data.
 4. When you directly approach us to inquire on any job roles/positions.
- B. We will collect Candidate Data from others (indirectly). This might be through;
 1. Directly from third parties, such as recruitment/headhunting agencies who refer candidates to us for specific roles.
 2. Internally, from our employees, when they refer candidates to us.
 3. From publicly accessible sources (for example the internet, LinkedIn etc).
 4. Via our systems (for example door entry systems and reception logs, CCTV and Access control systems, communication systems, email and instant messaging) when we interact with you during the recruitment process.

6. [The Purpose] How we use and process Candidate Personal Data

We may process your Candidate Personal Data for the following purposes:

Purpose of Processing	Lawful Basis
For recruiting purposes, to determine your qualifications for employment, and to make hiring decisions. For instance, we may process Candidate Personal Data when evaluating your candidacy and communicating with you about the hiring process. Where legally permissible to do so, we may contact you about Fortude roles for which you may be a fit.	Legitimate interests; Consent
To send you communications about Fortude job postings, careers fairs, newsletters, and related corporate communications.	Consent
To inform you about Fortude recruitment events in which you choose to participate. For instance, career fairs or university/nonprofit recruitment events.	Legitimate interests; Consent
For the purpose of equal opportunities monitoring, compliance with anti-discrimination laws, or government-reporting obligations.	Consent; Legal obligations
To establish, exercise, or defend against legal claims.	Legal claims; Legal obligations
To protect the safety, security, and integrity of our property (such as our databases and other technology assets); to protect the rights of those who interact with us or others; and to detect, prevent, and respond to security incidents or other malicious, deceptive, fraudulent, or illegal activity. For instance, this may involve collecting and processing special categories of Candidate Personal Data (e.g., health data) where necessary for reasons of public health or as required by applicable law.	Legitimate interests; Public interest; Legal claims; Vital interests; Legal obligations

Purpose of Processing	Lawful Basis
To fulfill a referral request when you are referred for a role with Fortude by a Fortude employee using our referral process, as permissible, including by using the provided contact information to reach out to you.	Consent; Legitimate interests
To perform a contract to which you are a party or to take steps at your request prior to entering into a contract. For instance, to take steps prior to entering an employment contract with you.	Contract
To understand and improve our recruitment process. For instance, including efforts to promote diversity, equity, and inclusion, where legally permissible.	Legitimate interests; Consent
Where you have voluntarily agreed to have Candidate Personal Data processed.	Consent

7. To whom we share Candidate Personal Data

7.1. INTERNAL THIRD PARTIES:

We may be required to share Candidate Personal Data within the Fortude Group for the purposes set out in the table above. Our group entities are currently located in Sri Lanka, Singapore, Australia, the USA, Canada, the Netherlands and the United Kingdom. If it is necessary for a group entity outside your jurisdiction to transfer and process Candidate Personal Data, such group entity will act as joint controller and processor and we will notify you by text or email.

We shall use appropriate safeguards to ensure that:

- We only transfer Candidate Personal Data to jurisdictions that can guarantee the provision of appropriate technical and organizational measures to ensure the protection of Candidate Personal Data in accordance with this Notice; and
- Third Parties bound by a contract which gives Candidate Personal Data the same protection it has in the Controller's jurisdiction.

Please contact our Data Protection Officer (DPO@fortude.co) if you require any additional information regarding the mechanism used for the transfer of Candidate Personal Data outside the jurisdiction in which you reside.

7.2. EXTERNAL THIRD PARTIES

If we do need to share Candidate Personal Data with any external third parties (other than the situations permitted in this Notice), we will contact you *via* text or email to obtain your express consent before doing so (unless statutorily not required to do so). We will, however, ensure that sharing of your data is kept to a minimum. We do not permit your Candidate Personal Data to be used by those third parties for their own purposes, and they may only process data including Candidate Personal Data for specified purposes, and in accordance with our instructions.

We will not share your Candidate Personal Data with any external third parties, except in the following instances:

- Service providers, such as data storage and platform providers.
- Law enforcement, government agencies, and other recipients for legal, security, and safety purposes, when we are legally required to do so.
- In connection with a corporate transaction, including if we sell, acquire, or merge all or some of our assets.
- Professional advisors, such as lawyers, accountants, and auditors
- Affiliates and subsidiaries within the Fortude Group, which includes parent and ultimate holding companies, affiliates, subsidiaries, business units and other companies that we acquire in the future after they are made part of the Fortude Group.
- To which you have consented to the disclosure.

If we request for you to provide any additional information not described above, we will notify you at the time of collection why we are asking for it and how we will process it. We may also de-identify, anonymize, or aggregate personal data to use and share with third parties for any purpose, where legally permitted.

8. Retention of Candidate Personal Data

Candidate Personal Data will be stored in accordance with applicable laws and kept as long as needed to carry out the purposes described in this Notice (or as otherwise required by applicable law).

If you are successful with your job application, Candidate Personal Data will be kept in accordance with our Employee Privacy Notice.

If you are unsuccessful with your job application, your personal data will be kept for the duration of the application process, plus a reasonable period of time and in any event, not more than 6 months after confirmation that your application was unsuccessful to allow us to record the reasons for our decision in relation to your application (including so that we can exercise, establish, or defend any legal claims).

Where permissible, we may also retain Candidate Personal Data for 6 months after confirmation that your application was unsuccessful to consider you for other suitable openings within Fortude in the future.

If you would like to opt-out from Fortude's Notice of retaining your information for the purposes of considering you for other suitable openings, please email DPO@fortude.co.

9. How Does Fortude Keep Candidate Personal Data Secure?

In order to ensure that Candidate Personal Data is kept secure, and to prevent there being any breach of confidentiality or unauthorized use, we have put in place reasonable technical and organizational measures that are designed to prevent your personal data from being accidentally lost or used or accessed unlawfully. Access to your personal data is restricted to those with a need to access it, and regard will be given to the need for confidentiality when that personal data is processed.

If there is a suspected data security breach you will be notified. Where relevant, we will also inform the appropriate regulator of a suspected data security breach, where we are legally required to do so.

Please bear in mind that the transmission of information *via* the internet is not completely secure, and whilst we will do our best to protect your personal data, we cannot guarantee the security of data transmitted *via* our website, or by email, and any such transmission is at your own risk.

10. Your Data Subject Rights

You may have the following data protection rights, depending on *inter alia* the nature of the data shared and to the extent as required by the applicable jurisdictional legislation. These include the right to:

- **Access:** You may have the right to obtain confirmation from us if your personal data is being processed, and supplementary information; and the right to obtain a copy of your personal data undergoing the processing.
- **Rectification:** You may have the right to request the rectification of inaccurate personal data and to have incomplete data completed.
- **Objection:** You may have the right to object to the processing of your personal data if it has been processed under the legitimate interest or public interest legal basis. We shall no longer process the personal data unless we demonstrate compelling legitimate grounds for the processing which override your interests, rights, and freedoms or if the data is needed for the establishment, exercise, or defense of legal claims.
- **Portability:** You may have the right to receive your personal data that you have provided to us, in a structured, commonly-used and machine-readable format and have the right to transmit it to other data controllers without hindrance. This right only exists if the processing is based on your consent or a contract and the processing is carried out by automated means.

- **Restriction:** You may have the right to request to restrict the processing of your personal data in certain cases.
- **Erasure:** You may request to erase your personal data if (i) it is no longer necessary for the purposes for which we have collected it, (ii) you have withdrawn your consent and no other legal ground for the processing exists, (iii) you objected and no overriding legitimate grounds for the processing exist, or (iv) the processing is unlawful, or erasure is required to comply with a legal obligation.
- **Right to Lodge a Complaint:** You also may have the right to lodge a complaint with a supervisory authority in the country where you reside. Please click the the Relevant Local Country Addendum that may apply to you for more details

[Sri Lanka](#)
[Netherlands](#)

[Australia](#)
[USA](#)

[United Kingdom](#)
[Canada](#)

- **Right to Refuse or Withdraw Consent:** In case we ask for your consent to processing, you are free to refuse to give consent and you can withdraw your consent at any time without detriment by contacting us using the contact information provided above in [Section 6](#), or, in case of direct marketing e-mail communications, by clicking on the unsubscribe link. The lawfulness of any processing of your personal data that occurred prior to the withdrawal of your consent will not be affected.
- **Automated decision-making:** The types of automated decision-making referred to in Article 22(1) and (4) EU/U.K. General Data Protection Regulation (“GDPR”) do not take place in connection with your personal data. Should this change, we will inform you about why and how any such decision was made, the significance of it, and the possible consequences of it. You will also have the right to human intervention, to express your point of view, and to contest the decision.
- **Other Rights:** Depending on the local law of the jurisdiction in which you are located, you may have additional rights in relation to your personal data.

In some circumstances however, we may not be able to do what you have asked; for example, where there is a statutory or contractual requirement for us to process your personal data and it would not be possible to fulfil our legal obligations if we were to stop.

[Enforcement of your Rights under this section](#)

Please refer the **Local Country Addendum** applicable to you, for details regarding the enforcement of your data protection rights.

[Sri Lanka](#)
[Netherlands](#)

[Australia](#)
[USA](#)

[United Kingdom](#)
[Canada](#)

11. What Happens If This Privacy Notice is Updated?

We review and update this Privacy Notice from time to time. When we do, we will note the “effective date” and “version” at the top of this Privacy Notice. Any changes, updates or modifications will be

Document classification: Public

effective immediately upon posting. If we make material changes to this Privacy Notice, we may also let you know *via* a prominent notice on the website.

12. Contact Details

The Fortude Company as identified in Section 3 above is the controller for the purposes of this Privacy Notice for the respective Country, and is responsible for your personal data.

If you have any queries about this privacy Notice or our privacy practices or wish to exercise your legal rights, you may address your queries to our Data Protection Officer at:

**The Data Protection Officer,
Legal & Compliance,
DPO@fortude.co**

Any such request should clearly state the details of the Personal Data in respect of which your request is being made. Please refer to the **Local Country Addendum** applicable to you, for country specific details regarding your legal rights.

[Sri Lanka](#)
[Netherlands](#)

[Australia](#)
[USA](#)

[United Kingdom](#)
[Canada](#)

LOCAL COUNTRY ADDENDUM

Sri Lanka

This Local Country Addendum for Sri Lanka ("**Sri Lanka Addendum**") applies in relation to the processing of personal data of individuals falling within the scope of Section 2 of the Personal Data Protection Act, No. 9 of 2022 ("**PDPA**") by Fortude Sri Lanka.

Fortude Sri Lanka shall comply with the PDPA when processing your Personal Data and shall not use your Personal Data for any purposes which are not in this Privacy Notice. Detailed information on the PDPA can be found at: <https://www.icta.lk/data-protection-legislation-overview>

Exercise of your Data Protection Rights

You may exercise any of your data protection rights as stipulated in the Privacy Notice:

1. If you are above 18 years of age;
2. Where you are a minor, by a parent or a person who has parental authority over you or has been appointed as your legal guardian;
3. Where you are physically or mentally unfit, by a person who has been appointed as your guardian or administrator by a court of law;
4. Except in items 2 and 3 above, by a person duly authorized in writing by you to make a request; or
5. By your legal heir within a period of 10 years from your demise.

What we may need from you

We may need to request specific information from you to help us confirm your identity and ensure your right to access your personal data (or to exercise any of your other rights), which shall include your full name and National Identity Card (NIC) Number/Passport Number. This is a security measure to ensure that personal data is not disclosed to any person who has no right to receive it. We may also contact you *via* telephone or text to ask you for further information in relation to your request to speed up our response.

Time limit to respond

We will respond to your request as soon as reasonably possible. In the event we are not able to respond to your request within thirty (30) days after receiving your request, we will inform you before the deadline.

If we are unable to provide you with any Personal Data or to make a correction you have requested, we shall inform you of the reasons, unless we are not required to do so under the PDPA.

Personal Data Request Fees

We may have the right to charge fees which are directly related to and necessary for the processing of any Personal Data Request. Where a fee is charged, we shall inform you of the details of such fees and the reasons for imposing the same.

Complaints and Right of Appeal

You also have the right to lodge a complaint with a supervisory authority, if you consider that the processing of your personal data infringes the PDPA. If you are aggrieved by the decision of the supervisory authority, you may make an appeal to the Court of Appeal within 30 days of the decision, or as otherwise specified under the PDPA. We would, however, appreciate the chance to deal with your concerns before you approach a supervisory authority, so please contact us beforehand.

Amendments to the Sri Lanka Addendum

Fortude Sri Lanka reserves the right at any time to add to, change, update or modify this Sri Lanka Addendum. These changes will be notified on the website and will be effective immediately upon posting. If we make material changes to the Sri Lanka Addendum, we may also let you know *via* email.

This Sri Lanka Addendum was last updated on 20th February 2025

LOCAL COUNTRY ADDENDUM

Australia

This Local Country Addendum for Australia ("**Australia Addendum**") applies in relation to the collection, management, use and processing of personal data by Fortude Pty Ltd ("**Fortude Australia**") which falls within the scope of the *Privacy Act 1988* ("**PA**").

Fortude Australia shall comply with the PA when processing your personal data and shall not use your personal data for any purposes which are not in this Privacy Notice. Detailed information on the PA and the Australia Privacy Principles set out in the PA can be found at: <https://www.oaic.gov.au/privacy/australian-privacy-principles/read-the-australian-privacy-principles>

Collection of your sensitive information

Under certain circumstances, we may need to collect sensitive information about you. This might include any information or opinion about your racial or ethnic origin, political opinions, political association, religious or philosophical beliefs, membership of a trade union or other professional body, sexual preferences, criminal record, or health information.

If we collect your sensitive information, we will do so only with your consent, if it is necessary to prevent a serious and imminent threat to life or health, or as otherwise required or authorised by law, and we take appropriate measures to protect the security of your sensitive information.

Use and disclosure of personal data

In addition to using and disclosing personal data to provide you with our services and supply our products to you, your business or your company, Fortude may also collect, hold, use and disclose personal data:

1. for other purposes which we explain to you at the time of collection;
2. where you have provided consent; or
3. where we are required to do so by law.

Use or disclose personal data for a Secondary Purpose

1. Fortude will not use or disclose personal data for a purpose other than the primary purpose of collection unless both of the following apply: the secondary purpose is related to the primary purpose of collection and, if the personal data is sensitive information, directly related to the primary purpose of collection; and
2. you would reasonably expect us to use or disclose the personal data for the secondary purpose;
3. you have consented to the use or disclosure;

Situations where we may use or disclose information without obtaining your consent

It is also unreasonable or impracticable for us to obtain your consent and we believe that the use or disclosure is necessary to lessen or prevent:

1. a serious threat to an individual's life, health or safety
2. a serious threat to an individual's life, health or safety
3. a serious threat to public health or safety

4. the use or disclosure is required or authorized by or under law or a court or tribunal order;
5. we have reason to suspect that unlawful activity or misconduct of a serious nature that relates to Fortude Australia's activities or functions has been, is being or may be engaged in, and we use or disclose the personal data as a necessary part of our investigation of the matter or in reporting our concerns to relevant persons or authorities;
6. we reasonably believe that the use or disclosure is reasonably necessary for one or more enforcement activities conducted by, or on behalf of, an enforcement body (however, we would ordinarily give you prior notice before making such disclosure, unless we are compelled by law not to do so);
7. we reasonably believe that the use or disclosure is reasonably necessary to establish, exercise or defend a legal claim, or for the purposes of confidential alternative dispute resolution processes.

Retention of personal data

Fortude Australia will take measures to destroy and de-identify personal data that is no longer required for any lawful purpose (subject to any legal requirements imposed on us, for instance, in relation to record-keeping or a court order).

When your personal data is no longer needed for the purpose for which it was obtained, we will take reasonable steps to destroy or permanently de-identify your personal data. However, most of the personal data will be kept by us for a minimum of 7 years.

Cross-border disclosure of personal information

From time to time, entities which form part of the Fortude Group may assist us in providing our products and services and we may disclose your personal data to those entities for the purposes outlined above. These entities are located outside Australia, including in Sri Lanka, the USA, Canada and the United Kingdom.

In addition, some of the third-party service providers we disclose personal data to may be based in or have services located outside Australia.

For electronic data storage, we may use public cloud systems managed by third party service providers. You acknowledge that, having regard to the nature of cloud computing, your personal data may be replicated to locations other than the physical location of a service provider, and that your information may be stored or accessed outside Australia.

Where we disclose your personal data to third parties overseas (including entities which form part of the Fortude Group), we will take reasonable steps to ensure that data security and appropriate privacy practices are maintained. We will only disclose your personal data to third parties:

1. in accordance with this Privacy Notice;
2. if you have given us your consent;
3. if we reasonably believe that the overseas recipient is subject to a law or binding scheme that is, overall, substantially similar to the Australian Privacy Principles and the law or binding scheme can be enforced;
4. if the transfer is for your benefit, it is impracticable to obtain your consent, and if it were practicable to obtain such consent, you would be likely to give it;
5. if it is necessary in order to perform any contractual obligations or meet any other obligations between Fortude and you, or between you and a third party;
6. if the disclosure is required or authorised by an Australian law or order of an Australian court or tribunal.

Right to access personal data

We may ask you to verify your identity before granting access to your personal data and you may be asked to put your request in writing. Information that may be required from you includes your name and contact information, the information you wish to access, and the format in which you would like the information provided to you.

Only you or a person who you have authorised to act on your behalf will be able to make a request for access.

There may be some circumstances where your access to personal data may be denied under the PA or other laws (for example if access would impact the privacy of others).

We aim to ensure that the personal data we hold about you is accurate, complete, and up to date. If your personal data requires any updates, or you believe that the information we hold is incorrect or incomplete, please inform us to enable us to update our records.

Fees

Requesting your personal data is free, however, we may charge a fee for providing access. A fee may be payable for locating, retrieving, and reproducing the personal data or for postage or any other materials involved which carry a fee for providing access. If we intend to charge you an access fee, you will be provided with the fees associated along with the reasons why a fee is payable in advance.

Complaints Process

If you believe there has been a breach of the PA, or have any questions or concerns about this Privacy Notice or how we handle your personal data, please contact us DPO@fortune.co

If you have a complaint, we may ask that you put it in writing and provide further details as necessary. We will handle your complaint fairly, and in a timely manner, having regard to the nature of the matter and the relevant circumstances. If the matter is complex and it is anticipated that the investigation will take longer than 30 days, we will notify you and keep you informed on the progress of our investigations.

If you are not satisfied with the response, you can refer your complaint to the Office of the Australian Information Commissioner:

Phone: 1300 363 992

Online: <https://www.oaic.gov.au/privacy/privacy-complaints/lodge-a-privacy-complaint-with-us>

Post: GPO Box 5218, Sydney NSW 2001

Amendments to Australia Addendum

Fortude Australia reserves the right at any time to add to, change, update or modify this Australia Addendum. These changes will be notified on the website and will be effective immediately upon posting. If we make material changes to the Australia Addendum, we may also let you know *via* email.

This Australia Addendum was last updated on 20th February 2025

LOCAL COUNTRY ADDENDUM

United Kingdom

This Local Country Addendum for the UK ("**UK Addendum**") applies in relation to the processing, by Fortude Group, of personal data of individuals that is subject to the Data Protection Act 2018.

International transfers

Some of our external third parties are based outside the UK so their processing of your personal data will involve a transfer of data outside the UK.

Whenever we transfer your personal data out of the UK, we ensure a similar degree of protection is afforded to it by ensuring at least one of the following safeguards is implemented:

1. We will only transfer your personal data to countries that have been deemed to provide an adequate level of protection for personal data.
2. Where we use certain service providers, we may use specific contracts approved for use in the UK which give personal data the same protection it has in the UK.

Please contact us if you want further information on the specific mechanism used by us when transferring your personal data out of the UK.

Information Commissioner's Office

You have the right to make a complaint at any time to the Information Commissioner's Office (ICO), the UK supervisory authority for data protection issues (www.ico.org.uk). We would, however, appreciate the chance to deal with your concerns before you approach the ICO so please contact us in the first instance.

This UK Addendum was last updated on 20th February 2025.

LOCAL COUNTRY ADDENDUM

United States of America

This Local Country Addendum for the United States of America ("U.S. Addendum") applies in relation to the processing of personal data of individuals falling within the scope of applicable U.S. data privacy laws, including, without limitation, the Children's Online Privacy Protection Act (15 U.S.C. §§ 6501-6506) (COPPA) and the California Online Privacy Protection Act (Cal. Bus. & Prof. Code §§ 22575-22579) (CalOPPA). This U.S. Addendum supplements the Privacy Notice and provides additional terms for compliance with specific applicable U.S. data privacy laws.

Children Under the Age of 13

Our website is not intended for children under 13 years of age. No one under the age of 13 may provide any personal information to or on our website. We do not knowingly collect personal information from children under 13. If you are under 13, do not use or provide any information on our website or through any of its features, or provide any information about yourself to us, including your name, address, telephone number, email address, or any screen name or username you may use. If we learn we have collected or received personal information from a child under 13 without verification of parental consent, we will delete that information. If you believe we might have any information from or about a child under 13, please contact us at DPO@fortude.co

Third Party Tracking

Some content or applications on our website are served by third parties, including advertisers, ad networks and servers, content providers, and application providers. These third parties may use cookies alone or in conjunction with web beacons or other tracking technologies to collect information about you when you use our website. The information they collect may be associated with your personal information or they may collect information, including personal information, about your online activities over time and across different websites and other online services. They may use this information to provide you with interest-based (behavioural) advertising or other targeted content. We do not control these third parties' tracking technologies or how they may be used. If you have any questions about an advertisement or other targeted content, you should contact the responsible provider directly.

Access to User Information

In the event we collect any information from you that you wish to retrieve, update, modify or delete, please contact us at DPO@fortude.co

State Privacy Rights

Nevada provides its residents with a limited right to opt out of certain personal information sales. Residents who wish to exercise this sale opt-out rights may submit a request by contacting us at DPO@fortude.co. However, please know we do not currently sell data triggering that statute's opt-out requirements.

Pursuant to Section 1798.83 of the California Civil Code, residents of California have the right to request from a business, with whom the California resident has an established business relationship, certain information with respect to the types of personal information the business shares with third parties for

direct marketing purposes by such third party and the identities of the third parties with whom the business has shared such information during the immediately preceding calendar year. To request a copy of the information disclosure provided by us pursuant to Section 1798.83 of the California Civil Code, please contact us at DPO@fortude.co

Do Not Track Disclosure

Note that your browser settings may allow you to automatically transmit a "Do Not Track" signal to websites and online services you visit. There is no consensus among industry participants as to what "Do Not Track" means in this context. Like many websites and online services, we currently do not alter our practices when we receive a "Do Not Track" signal from a visitor's browser.

This U.S. Addendum was last updated on 20th February 2025.

LOCAL COUNTRY ADDENDUM

Canada

This Local Country Addendum for Canada ("**Canada Addendum**") applies in relation to the processing of "personal information" of individuals falling within the scope of the *Personal Information Protection and Electronic Documents Act*, S.C. 2000, c. 5 ("**PIPEDA**") by Fortude Canada. As used in this Canada Addendum, "Personal Data" shall refer to "personal data" as defined in the Privacy Notice that falls within the definition of "personal information" as used in PIPEDA.

Fortude Canada shall comply with PIPEDA when processing your Personal Data and shall not use your Personal Data for any purposes which are not specified in this Privacy Notice. Detailed information on PIPEDA can be found at: https://www.priv.gc.ca/en/privacy-topics/privacy-laws-in-canada/the-personal-information-protection-and-electronic-documents-act-pipeda/pipeda_brief/.

Exercise of your Data Protection Rights

You may exercise any of your data protection rights as stipulated in the Privacy Notice:

- If you are above 18 years of age;
- Where you are a minor, by a parent or a person who has parental authority over you or has been appointed as your legal guardian;
- Where you are physically or mentally unfit, by a person who has been appointed as your guardian or administrator by a court of law;
- Except in items 2 and 3 above, by a person duly authorized in writing by you to make a request; or
- By your legal heir within a period of 10 years from your demise.

What we may need from you

We may need to request specific information from you to help us confirm your identity and ensure your right to access your personal data (or to exercise any of your other rights), which shall include your full name and other information or documentation that we may reasonably request to confirm your identity. This is a security measure to ensure that personal data is not disclosed to any person who has no right to receive it.

Time limit to respond

We will respond to your request as soon as reasonably possible. In the event we are not able to respond to your request within thirty (30) days after receiving your request, we will inform you before the deadline.

If we are unable to provide you with any Personal Data or to make a correction you have requested, we shall inform you of the reasons.

Transmission and storage of Personal Data outside Canada

Personal Data that we collect may be uploaded, moved, stored, processed in, backed up and/or transferred between any of the countries in which we operate or may operate in order to enable us to collect, use, and/or disclose the Personal Data in accordance with the Privacy Notice. Your Personal Data may be uploaded, moved, stored, processed in, backed up and/or transferred in Fortude Canada's discretion in Canada or in jurisdictions other than Canada, including the United States, and you consent to the same. You also acknowledge and agree that your Personal Data may be transmitted, uploaded, or moved across international borders in Fortude Canada's discretion, and you consent to the same. Personal Data processed and stored in another country may be subject to disclosure or access requests

by the governments, courts or law enforcement or regulatory agencies in that country according to its laws.

PIPEDA Use and Disclosure Exceptions

You acknowledge and agree that Fortude Canada may use and/or disclose your Personal Data, without notice, if legally permitted to do so according to the relevant provisions of PIPEDA, and/or any other relevant privacy enactment. PIPEDA may permit the use and/or disclosure of Personal Information without notice if, for example: (a) the Personal Data could be useful in the investigation of a contravention of the laws of Canada, a province of Canada or a foreign jurisdiction; (b) the Personal Data is used or disclosed for the purpose of acting in respect of an emergency that threatens the life, health or security of an individual; and/or (c) the Personal Data is disclosed to comply with the edicts of the law, or to comply with a subpoena or warrant issued or an order made by a court.

Complaints

You also have the right to lodge a complaint with the applicable supervisory authority, if you consider that the processing of your personal data infringes upon any rights or obligations under PIPEDA. We would, however, appreciate the chance to deal with your concerns before you approach a supervisory authority, so please contact us beforehand.

Amendments to the Canada Addendum

Fortude Canada reserves the right at any time to add to, change, update or modify this Canada Addendum. These changes will be notified on the website and will be effective immediately upon posting. If we make material changes to the Canada Addendum, we may also let you know *via* email.

This Canada Addendum was last updated on 20th February 2025.

LOCAL COUNTRY ADDENDUM

Netherlands

This Local Country Addendum for the Netherlands ("Netherlands Addendum") applies in relation to the processing, by Fortude Group, of personal data of individuals that is subject to the General Data Protection Regulation (GDPR) and the Dutch Algemene Verordening Gegevensbescherming (AVG). If you are residing any other Member State of the EU other than Netherlands, please refer to the Regional Addendum at https://commission.europa.eu/law/law-topic/data-protection_en.

International transfers

Some of our external third parties are based outside the EU so their processing of your personal data will involve a transfer of data outside the EU. We may transfer your personal data to "third countries" outside the EU/EEA, including the United States and India. Such transfers are based on either the standard contractual clauses of the European Commission ([here](#)) and adequacy decisions from the European Commission ([here](#)) or another applicable legal basis for such transfer.

Whenever we transfer your personal data out of the EU, we ensure a similar degree of protection is afforded to it by ensuring at least one of the following safeguards is implemented:

1. We will only transfer your personal data to countries that have been deemed to provide an adequate level of protection for personal data.
2. Where we use certain service providers, we may use specific contracts approved for use in the EU which give personal data the same protection it has in the EU.

Please contact us if you want further information on the specific mechanism used by us when transferring your personal data out of the EU.

Autoriteit Persoonsgegevens

You have the right to make a complaint at any time to the Autoriteit Persoonsgegevens (AP), the Dutch supervisory authority for data protection issues (www.autoriteitpersoonsgegevens.nl). We would, however, appreciate the chance to address your concerns before you approach the AP, so please contact us in the first instance.

This Netherlands Addendum was last updated on 20th February 2025

LOCAL COUNTRY ADDENDUM

Singapore

This Local Country Addendum for Singapore ("Singapore Addendum") applies in relation to the processing of personal data of individuals falling within the scope of the Personal Data Protection Act 2012 (No. 26 of 2012) ("PDPA") by Fortude Singapore.

Fortude Singapore shall comply with the PDPA when processing your Personal Data and shall not use your Personal Data for any purposes which are not in this Privacy Notice. Detailed information on the PDPA can be found at: <https://www.pdpc.gov.sg/>

Exercise of Your Data Protection Rights

You may exercise any of your data protection rights as stipulated in the Privacy Notice:

1. If you are above 18 years of age;
2. Where you are a minor, by a parent, a person who has parental authority over you, or your legal guardian;
3. Where you are physically or mentally incapacitated, by a person appointed as your guardian or deputy by a court of law;
4. By a person duly authorized in writing by you to make a request on your behalf; or
5. By your legal heir or personal representative after your demise.

What We May Need from You

To confirm your identity and ensure your right to access your Personal Data (or to exercise any of your other rights), we may request the following information:

- Your full name and NRIC/FIN/Passport Number.

This is a security measure to ensure that personal data is not disclosed to unauthorized individuals. We may also contact you via telephone, email, or other means to request additional information to expedite the processing of your request.

Time Limit to Respond

We will respond to your request as soon as reasonably possible. If we are unable to respond to your request within thirty (30) days of receiving it, we will notify you before the deadline. If we are unable to fulfill your request or make a correction, we will inform you of the reasons, unless otherwise exempted under the PDPA.

Personal Data Request Fees

We may charge fees directly related to and necessary for the processing of your Personal Data Request. If a fee is applicable, we will inform you of the details and the reasons for imposing the charge before processing your request.

Complaints and Right of Appeal

You have the right to lodge a complaint with the Personal Data Protection Commission ("PDPC") if you believe your personal data has been handled in breach of the PDPA.

If you are dissatisfied with the PDPC's decision, you may file an appeal with the Data Protection Appeal Committee or the courts, as provided under the PDPA.

We encourage you to raise any concerns directly with us first, and we will do our best to address them promptly.

Amendments to the Singapore Addendum

Fortude Singapore reserves the right to update, modify, or amend this Singapore Addendum at any time. Changes will be published on the website and will be effective immediately upon posting. If we make material changes to this Singapore Addendum, we may also notify you via email.

This Singapore Addendum was last updated on 20th February 2025

REGIONAL ADDENDUM

European Union

This Local Region Addendum for the European Union ("EU Addendum") applies to the processing of personal data by Fortude Group in relation to individuals whose data is subject to the General Data Protection Regulation (GDPR). If you are residing in Netherlands, please refer to the Local Country Addendum at <https://www.autoriteitpersoonsgegevens.nl/en/themes/basic-gdpr/privacy-and-personal-data/privacy-legislation>.

International Transfers

Some of our external third parties are located outside the EU/EEA, and their processing of your personal data may involve transferring data to "third countries."

When transferring your personal data outside the EU/EEA, we ensure a comparable level of protection by implementing at least one of the following safeguards:

1. **Adequacy Decisions:** We transfer data to countries deemed by the European Commission to provide an adequate level of protection for personal data.
2. **Standard Contractual Clauses (SCCs):** When using service providers based in third countries, we may implement the SCCs approved by the European Commission to ensure the same level of protection for personal data as within the EU.
3. **Other Legal Mechanisms:** In certain cases, we may rely on other applicable legal bases for data transfers, such as your explicit consent or the necessity of the transfer for contractual obligations.

For more information about the specific mechanisms we use to transfer your personal data outside the EU/EEA, please contact us.

Supervisory Authority

You have the right to file a complaint with the supervisory authority in your country of residence or workplace, or where an alleged GDPR violation has occurred. A list of EU supervisory authorities is available [here](#).

We would appreciate the opportunity to address your concerns directly before you escalate them to a supervisory authority. Please contact us first, and we will do our best to resolve any issues promptly.

You can contact us at:

This EU Addendum was last updated on 09 April 2025.

